

under particular circumstances, for it is the duty of the trustee to superintend the receiver and check the accounts

App. 86 Pa. St. 346; Harper's App. 111 Pa. St. 243; two and one-half per cent has been allowed for selling land, and three per cent for extra services; Carrier's App. 79 Pa. St. 230; Snyder's App. 54 Pa. St. 69.

In New Jersey, by statute in addition to expenses the commission shall not exceed seven per cent on first \$1000, four per cent on next \$4000, three per cent on next \$5000, and two per cent on all above \$10,000. The trustee may forfeit the whole or a part of his compensation by improper conduct in the management of his trust; *Blauvelt v. Ackerman*, 23 N. J. Eq. 495; *Lathrop v. Smalley*, 23 N. J. Eq. 192; *Moore v. Zabriskie*, 3 Green, 51.

In Alabama the compensation depends on the size of the estate and the labor involved; *Gould v. Hays*, 25 Ala. 432; though five per cent is common; *Woodruff v. Snedecor*, 68 Ala. 437; *Bendall v. Bendall*, 24 Ala. 306; but an allowance by the day may be given; *Magee v. Cowperthwaite*, 10 Ala. 968; or a gross sum given; *O'Neill v. Donnell*, 9 Ala. 738; expenses are allowed; *Hearrir v. Savage*, 16 Ala. 291; misconduct may forfeit the compensation; *Lyon v. Foscue*, 60 Ala. 468; *Gould v. Hays*, 25 Ala. 432.

In North Carolina trustees may receive five per cent and necessary expenses; *Walton v. Avery*, 2 Dev. & B. Eq. 405; *Turnage v. Greene*, 2 Jones Eq. 63; trustees may be charged compound interest, if they are at fault; *Thompson v. McDonald*, 2 Dev. & B. Eq. 471; a trustee *de son tort* will not be allowed compensation; *Hagler v. McCombs*, 66 N. C. 345.

In South Carolina the statutes allow two and a half per cent commission, but if the compensation is named in the declaration of trust that will control; *College v. Willingham*, 13 Rich. Eq. 195; ten per cent is allowed on income of sums invested, but this includes all travel and expenses; *Norton v. Gillison*, 4 Rich. Eq. 219; *Snow v. Callum*, 1 Des. 542. If trustees agree to serve without compensation, they can recover for their services; *M'Caw v. Blewit*, 2 McCord, Eq. 90; see as to additional compensation, *Sollie v. Croft*, 9 Rich. Eq. 474.

In Virginia the court allows five per cent of the receipts; *Kee v. Kee*, 2 Gratt. 132; *Triplett v. Jameson*, 2 Munf. 242; *Waddy v. Hawkins*, 4 Leigh, 458; this allowed for selling land; *Deanes v. Scriba*, 2 Call. 416; in specially difficult cases more is allowed; *Hipkins v. Bernard*, 4 Munf. 93; *M'Call v. Peachy*, 3 Munf. 306.

In Maryland from five to ten per cent is allowed; *Abbott v. Packet Co.* 4 Md. Ch. 315; from seven to three per cent is allowed for sale of land, as the amount increases; *Gibson's Case*, 1 Bland, 147; a daily allowance is not approved, but liberal expenses are allowed; *Northern C. R. Co. v. Keighler*, 29 Md. 572; *Dorsey v. Dorsey*, 10 Md. 471; provisions in trust deed will be disregarded; *Widener v. Fay*, 51 Md. 273.

In Tennessee five per cent is the usual allowance; *Stretch v. Gowdey*, 3 Tenn. Ch. 565.

In Georgia the trustee receives a commission; *Lowe v. Morris*, 13 Ga. 169; but he must not draw on the body of the estate; *Burney v. Spear*, 17 Ga. 225.

In Mississippi from five to ten per cent is allowed; *Cherry v. Jarratt*, 3 Cush. (Miss.) 221; *Merrill v. Moore*, 7 How. (Miss.) 292; this includes expenses; *Satterwhite v. Littlefield*, 13 Sm. & M. 306; sometimes an extra allowance is given; *Shirley v. Shattuck*, 6 Cush. (Miss.) 26.